HENRY NHERERA

Versus

THE STATE.

IN THE HIGH COURT OF ZIMBABWE
DUBE & NDUNA JJ
BULAWAYO 14 NOVEMBER 2025 & 28 FEBRUARY 2026

D. Kossam, for the appellant
V. Moyo, for the respondent

Criminal appeal

NDUNA J: This is an appeal against conviction of the Magistrates' Court sitting at Western Commonage, Bulawayo, in which the appellant was convicted on 31 January 2025 of contravening sections 67 and 66 of the Criminal Law (Codification and Reform) Act, namely indecent assault and aggravated indecent assault. He was sentenced to twelve months imprisonment on the first count and fifteen months' imprisonment on the second count. Being dissatisfied with both conviction and sentence, he noted an appeal to this court on the following grounds of appeal

GROUNDS OF APPEAL

"AD CONVICTION

COUNT 1- INDECENT ASSAULT

1. The court *a quo* erred when it ruled that the state had proven its case beyond a reasonable doubt when it relied on uncorroborated evidence of the complainant and evidence at hand showing the contrary.

2. The court *a quo* erred in dismissing the accused person's defence to the effect that there was bad blood between him and the complainant's brothers, which was probable.

3. The court *a quo* erred when it ignored the fact that the report was never made timeously, especially considering that in the process of commission of the offence the complainant would get time to chat with her biological mother but not reporting the indecent assault.

COUNT 2 - AGGRAVATED INDECENT ASSAULT

1. The court *a quo* erred and misdirected itself when it ruled that there was aggravated indecent assault when the state never adduced evidence before the court which shows that indeed a finger was inserted into the private parts of the complainant.

2. It was an error on the part of the court *a quo* to rule against the finding of the medical doctor who examined the complainant who clearly stated that there was no penetration when on the other hand the complainant stated that the whole finger was inserted.

RELIEF SOUGHT

"The appellant prays that:

1. The appeal on both counts be and is hereby allowed.
2. The Appeal against conviction on both count one and count two be and is hereby granted.
3. The whole decision of the court *a quo* be and is hereby set aside and substituted with the following

"The accused person be and is hereby found not guilty and acquitted."

FACTUAL BACKGROUND

The record reflects that the complainant was a minor attending Gampu Primary School at the material times. The appellant, a 48-year-old married man with three children, was a co-tenant at the same premises where the complainant resided. The relationship between the parties was therefore one of proximity and familiarity.

The State's case was that in 2022, while the complainant was still of tender years, she entered the appellant's room. During that encounter, the appellant covered them with a blanket

and fondled her breasts and touched her private parts. The second incident allegedly occurred on 16 October 2024. On that occasion, the appellant is said to have fondled her breasts, spread her legs apart and inserted his finger into her vagina several times. The complainant did not immediately report the incidents. The disclosure arose after she attended a lesson at school concerning various forms of abuse, including sexual abuse. The lesson appears to have triggered an emotional response. She was observed crying by her classmates, who informed the teacher. After classes, she was approached by her teachers and eventually disclosed what had occurred. The Deputy Head was informed and the police were notified. An investigation ensued, during which the complainant narrated the two incidents and identified the appellant as the perpetrator, referring to him as "Madzibaba" and as the father of Ropa, confirming their co-tenancy. The appellant was thereafter arrested and prosecuted.

At trial, the complainant testified and described both incidents in detail. She maintained that during the first incident the appellant fondled her breasts and touched her private parts. In respect of the second incident, she was explicit that he inserted his finger into her vagina. The appellant gave evidence in his defence and denied any improper conduct. He disputed the allegations in their entirety and maintained his innocence.

A medical report was produced. It indicated that there were no tears or injuries to the hymen. Although the record does not contain viva voce evidence from the examining doctor, the report itself forms part of the evidentiary material. The absence of hymenal injury was relied upon by the defence to argue that penetration had not occurred.

ISSUES FOR DETERMINATION

1. Whether the complainant was a credible witness and whether her evidence required corroboration
2. Whether or not the complainant was coerced into making false allegations against the appellant.
3. Whether or not the report was made timeously
4. Whether or not the report was made timeously

APPLICATION OF THE LAW

The accused was charged with two offences, which are section 67 of the Criminal Law Codification Act for indecent assault, and section 66 of the Criminal Law Codification Act for aggravated indecent assault.

Indecent assault is defined in section 67 of the Code, as follows:

> "any person who commits upon a female person any act involving physical contact that would be regarded by a reasonable person to be an indecent act, other than sexual intercourse or anal sexual intercourse or other act involving the penetration of any part of the female person's body or of his own body".

Aggravated Indecent assault is defined in section 66 of the Code, as follows:

> "Any person who commits upon a female person any act, other than sexual intercourse or anal sexual intercourse, involving the penetration of any part of the female person's body or of his own body".

Whether the complainant was a credible witness and whether her evidence required corroboration

The appellant contends that he was convicted on uncorroborated evidence and that the State's failure to call Ropa, who was allegedly present during the first incident, was fatal to its case. The determinative issue is whether the complainant, as a single witness, was sufficiently credible to sustain a conviction.

The governing provision is section 269 of the Criminal Procedure and Evidence Act, which permits a conviction on the single evidence of a competent and credible witness The section provides that:

> "It shall be lawful for the court by which any person prosecuted for any offence is tried to convict such person of any offence alleged against him in the indictment, summons or charge under trial on the single evidence of any competent and credible witness:
>
> Provided that it shall not be competent for any court—
>
> (*a*) to convict any person of perjury on the evidence of any one witness as to the falsity of any statement made by the accused unless, in addition to and independently of the testimony of such witness, some other competent and credible evidence as to the falsity of such statement is given to such court;

(*b*) to convict any person of treason, except upon the evidence of two witnesses where one overt act is charged in the indictment or, where two or more such overt acts are so charged, upon the evidence of one witness to each such overt act;

(*c*) to convict any person on the single evidence of any witness of an offence in respect of which provision to the contrary is made by any enactment."

In light of the foregoing, the court a quo was legally empowered to convict on the evidence of the complainant alone, notwithstanding the appellant's contention that her testimony was uncorroborated. Section 269 of the Criminal Procedure and Evidence Act expressly authorises a conviction on the single evidence of a competent and credible witness, save for limited statutory exceptions which are inapplicable to sexual offences. There is therefore no rule of law requiring corroboration in matters of this nature.

The complainant's evidence did not stand in isolation in any event. She reported the incidents to her class teacher, Miss N. Maseko, and later to the police. The details given in those initial reports were materially consistent with her testimony before the court a quo. Consistency in repetition of the essential allegations strengthens credibility and diminishes the likelihood of fabrication. The trial court was therefore correct to assess her evidence as coherent, consistent and reliable.

In *S v Banana* 2000 (1) ZLR 607 (S) (hereafter *S v Banana*) at page 631, the Supreme Court referred the case of *R v Mokoena* 1932 OPD, where it was held, about a conviction based on a single witness, that:

> "The test formulated by De Villiers JP in *R v Mokoena* 1932 OPD 79 at 80 was that the evidence of such a single witness must be found to be 'clear and satisfactory in every material respect'."

The court went on to hold, at page 632, that.

> "There is no magic formula which can be regarded as an inflexible rule of thumb. There is no magic formula which determines when a conviction is warranted upon the testimony of a single witness. His evidence must be approached with caution, and its merits weighed against any factors that militate against its credibility. In essence a common sense approach must be applied. If the court is convinced beyond a reasonable doubt that the sole witness has spoken the truth, it must convict, notwithstanding that he was in some respects unsatisfactory.

The complainant's evidence was evaluated and it was found that there was consistency in her account, and it led to the conclusion that she was a credible witness and that her testimony was truthful in all material respects. No material misdirection in that assessment has been demonstrated. Accordingly, the conviction founded substantially on her single testimony cannot be faulted in law. The first ground of appeal therefore lacks merit and falls to be dismissed.

Whether or not the complainant was coerced into making false allegations against the appellant.

The issue of coercion must be assessed against the prior finding on credibility. The complainant was found by the court a quo to be a credible and reliable witness and this court is also of the same view that there was no misdirection in finding her as a credible witness.

In light of that credibility assessment, the allegation that she was coerced into fabricating the complaint is incongruous. The manner in which the matter came to light through disclosure to her teacher after a school lesson does not reflect external manipulation. The report originated within an educational setting and was escalated through institutional channels before any alleged family influence could arise.

An assertion of coercion is incompatible with a judicial finding that the complainant testified truthfully. Absent material misdirection, such a credibility finding stands. The coercion allegation therefore lacks evidential foundation and cannot displace the court's earlier conclusion that the complainant was a credible witness.

Whether or not the report was made timeously

The appellant's contention that the complaint was not made timeously raises the issue of admissibility and evidential weight of a first report in sexual offence matters. The governing principles were restated by the Supreme Court in *S v Banana supra*, where it was held

"The requirements for admissibility of a complaint are:

(1) It must have been made voluntarily and not as a result of questions of a leading and inducing or intimidating nature.

(2) It must have been made without undue delay and at the earliest opportunity, in all the circumstances, to the first person to whom the complainant could reasonably be expected to make it."

The concept of "undue delay" is not mechanical. It is contextual and must be assessed in light of the complainant's age, understanding, and the surrounding circumstances.

In the present matter, the first incident allegedly occurred in 2022, with disclosure taking place in October 2024. On the face of it, this interval appears lengthy. However, the evidence established that the complainant was a minor of tender years and did not appreciate that the conduct amounted to sexual abuse until she received instruction at school on the subject. It was during that lesson that she became visibly distressed and disclosed the incidents to her class teacher. The disclosure was spontaneous, prompted by her emotional reaction rather than external pressure. That evidence was not materially challenged in the court *a quo*.

The second incident occurred only two days before the school lesson and subsequent report. In relation to that count, the report was made at the earliest practical opportunity. In relation to the first count, the delay was explained by lack of awareness and understanding, factors directly linked to her age at the time of the incident.

Applying the principles in *S v Banana*, the complaint was made voluntarily and at the earliest reasonable opportunity in the circumstances. The explanation for delay is rational and consistent with the complainant's age and level of understanding. The court a quo was therefore correct in holding that the report was timeous in law and admissible in respect of both counts.

The ground of appeal premised on alleged delay consequently lacks merit and falls to be dismissed.

Whether or not there was penetration to prove a conviction of aggravated indecent assault.

The court must determine whether the offence of aggravated indecent assault was established, specifically whether there was legal penetration of the complainant.

The complainant testified that the appellant inserted a finger into her vagina. The appellant denied this allegation. The medical report recorded no tears or injury to the hymen, which may

suggest the absence of physical trauma. However, the absence of hymenal injury is not conclusive proof that penetration did not occur. The complainant's evidence was that she felt penetration. The court was therefore required to assess the truthfulness and reliability of that account

In *Mbedzi v State* CA&R 14/19) [2019] ZANCHC page 59 in an Appeal to the High Court of South Africa, a similar complaint was lodged, wherein the complainant filed a complaint against the Appellant in that case, on the allegations that she felt a finger in her vagina while she was asleep, only to wake up and see it was the appellant, who in turn denied ever doing so. Upon medical examinations, it was revealed that the hymen remained intact. Still, the examining doctor, in giving evidence in court, testified in para 5 that

> 'although he did not see any evidence of vaginal penetration, he could, however, not exclude the penetration on the external genitalia…'

This is evidence that, although the hymen may not be broken as in this case penetration cannot be ruled out, the complainant testified that she felt penetration in her vagina. It is unlikely that she would fabricate such horrific acts, and it is more probable that is what she experienced as held in *S v Musasa* 2002 (1) ZLR 280(H) that:

> "psychological research has established that young children do not fantasize about being raped and other unusual, horrific occurrences but that their fantasies and play are characterized by their daily experience."

The court a quo convicted the appellant on the second count of aggravated indecent assault after finding that legal penetration had been proved. That approach accords with established authority. It is settled that legal penetration in sexual offences does not require rupture of the hymen or full anatomical entry. In *S v Mhanje* 2000 (2)ZLR 20 (H), the court held that:

> "The medical perception of what constitutes penetration does not coincide with legal penetration. For rape to take place, it is not necessary that there should be full penetration. The slightest degree of penetration will suffice."

Applying that principle, the court a quo was entitled to conclude that legal penetration had occurred on the evidence before it. The conviction for aggravated indecent assault was therefore competent. The appellant's fourth and fifth grounds of appeal lack merit and fall to be dismissed.

The appeal therefore lacks merit in all its entirety it is hereby dismissed.

Nduna J……..

M. Dube J……. I agree

Liberty Mcijo and Associates, appellant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners